

SOFTWARE LICENCE AGREEMENT, COURTESY TRANSLATION

SenHub Agent, terms under which the licensed probes are granted

Sensor Factory SAS

Translation of the French agreement SF-LIC-AGENT-2026-01

The French version alone is binding. This text is provided for convenience

Draft, subject to legal review before it is given to a customer

Notice on this translation

The French version alone is binding

This agreement is governed by French law and was drawn up in French. The present text is an English translation provided for the convenience of readers who do not work in French. It has informative value only. Where this translation and the French version differ, for any reason whatsoever, the French version prevails, and it alone will be relied upon before any court. The French version bears the reference SF-LIC-AGENT-2026-01.

Article 1. Purpose and standing of this agreement

This agreement governs the grant, by Sensor Factory SAS, of the right to use the licensed components of the SenHub Agent software. It supplements the General Terms and Conditions of Sale version 4.0 dated 23 July 2026, to which it is subordinate for everything it does not expressly address, in particular prices, payment, liability, confidentiality and the settlement of disputes.

Where a particular document and this agreement conflict, the order of precedence is as follows: the particular conditions signed between the parties, then the accepted commercial proposal, then this agreement, then the General Terms and Conditions of Sale.

Article 2. Structure of the software

SenHub Agent is made of two sets whose legal regime differs, and that distinction governs the reading of everything that follows.

The open core

The binary, its collection engine, its output formats and most of its probes are published under the Apache 2.0 licence and their source code is public. The Customer may use them freely, on the terms of that licence, independently of this agreement and without limit of time.

The licensed probes

Seventeen probe types, covering equipment and software of third-party vendors, are not covered by the Apache 2.0 licence. Their use is granted by this agreement, against payment, for the term it sets.

One consequence follows, and the Customer should know it before signing: the expiry or termination of this agreement does not stop the agent and deprives the Customer of none of the probes of the open core. It suspends the use of the licensed probes alone.

Article 3. Definitions

The following terms, written with a capital letter, have in this agreement the meaning given to them here.

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- 1 **Agent.** One instance of the SenHub Agent software installed on a machine, physical or virtual, or run in a container.
 - 2 **Estate.** All the Agents operated by the Customer and by the entities it controls within the meaning of article L.233-3 of the French commercial code.
 - 3 **Agent Key.** The identifier each Agent produces for itself on first run. It is never entered by the Customer nor issued by Sensor Factory.
 - 4 **Licence Token.** The signed file Sensor Factory gives the Customer, which carries the level granted, the scope of authorised probes, the holder and the expiry date.
 - 5 **Licensed Probe.** A probe type whose use requires a valid Licence Token. The list appears in article 5.
 - 6 **Free Probe.** Any other probe type, usable without a Licence Token and without payment.
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Article 4. Grant

Sensor Factory grants the Customer, for the term set in article 7 and subject to payment of the agreed price, the right to use the Licensed Probes of the level subscribed.

That right is **non-exclusive, non-transferable** and **not open to sub-licensing**. It is granted for the Customer's own needs, to the exclusion of any operation on behalf of third parties, whether paid or not.

The right applies across the whole Estate. The Customer need not declare its Agents, cap their number, or request an extension when it installs new ones. One Licence Token activates every Agent of the Estate.

What the licence does not allow

The Customer shall not circumvent, neutralise or remove the mechanisms described in article 6, pass its Licence Token to a third party, offer the Licensed Probes within a service to third parties, or decompile the licensed components outside the cases the law imperatively allows. Article L.122-6-1 of the French intellectual property code is reserved.

Article 5. Levels and scope

There are three levels. The level subscribed appears in the accepted commercial proposal and is carried in the Licence Token.

Free

All Free Probes. No Licence Token, no payment, no limit of time and no limit on the number of Agents.

Pro

The Free Probes, and the seventeen Licensed Probes listed in the product documentation at the date of subscription.

Enterprise

The Free Probes, the seventeen Licensed Probes, and those Sensor Factory may publish during the term of the agreement.

A Free Probe moving to the licensed regime during the term cannot be held against the Customer: a probe it was using without a licence remains so until the end of the current term.

Article 6. How the control is implemented

Sensor Factory sets out here exactly how the licence control works, so that the Customer can audit it and take it into account in its own risk analysis. This account is a contractual undertaking: Sensor Factory may not substitute another mechanism for it without the Customer's written agreement.

Article 6, continued. The five properties of the mechanism

- 1 **A local check.** The Licence Token is a token signed by a private key held by Sensor Factory. The Agent verifies that signature with the matching public key, included in the binary.
- 2 **No outbound connection.** The check makes no network request. The Agent contacts no licence server, at installation or at run time. An Agent cut off from every public network behaves identically.
- 3 **No usage reporting.** Sensor Factory receives, by virtue of the licence control, no data about the Customer's Estate: not the number of Agents, nor their identity, nor the probes enabled, nor the machines monitored.
- 4 **A tolerance period.** On expiry of the Licence Token, the Licensed Probes keep working for seven days. That tolerance covers the practical delay of renewal and does not extend the right of use.
- 5 **A partial degradation.** After that period, the Licensed Probes alone stop collecting. The Agent keeps running, the Free Probes keep collecting, and the configured outputs keep sending.

The Licence Token carries a holder. Depending on what the parties agree, it designates the Customer, and then covers the whole Estate, or one specific Agent by its Agent Key, and then covers that Agent alone. The first form is the default.

Article 7. Term and renewal

The agreement takes effect when the Licence Token is delivered and runs until the expiry that token carries. It is renewed by the delivery of a new token, on the financial terms agreed between the parties.

Sensor Factory informs the Customer of the expiry at least sixty days beforehand. Absence of renewal produces the effects described in article 6, with no further formality.

Article 8. Versions and maintenance

During the term, the Customer has access to the corrective and evolutive versions of SenHub Agent published by Sensor Factory, at no extra charge. The Customer alone decides when to deploy them.

Sensor Factory does not warrant backward compatibility of output formats between major versions. Changes of that nature are announced in the release notes, with the migration path.

Technical support, where subscribed, is covered by a separate agreement and is not included in this grant.

Article 9. Intellectual property

Sensor Factory remains the owner of all intellectual property rights in the licensed components. This agreement effects no assignment.

The trade marks of third-party vendors and manufacturers, cited in the software and in its documentation to designate the systems monitored, remain the property of their respective owners. Their mention implies neither partnership nor certification.

Article 10. Data

SenHub Agent collects technical data about the systems the Customer points it at and sends it to the destinations the Customer configures. Sensor Factory receives none of that data, unless the Customer expressly configures an output to a platform operated by Sensor Factory, in which case the terms of that platform apply in addition.

The Customer remains the controller within the meaning of regulation 2016/679 for the data the Agent collects. It is for the Customer to check that the probes it enables do not collect personal data beyond what its own analysis allows.

Article 11. Compliance verification

Since the mechanism described in article 6 gives Sensor Factory no measure of usage, compliance verification rests on the Customer's declaration. Sensor Factory may, once in any twelve-month period and on thirty days' notice, ask the Customer for a written statement of the level subscribed and the scope of use. No access to the Customer's systems is required or requested.

Article 12. Termination

Either party may terminate the agreement for serious breach by the other, not remedied within thirty days of formal notice. Termination ends the right to use the Licensed Probes, without the Customer being required to uninstall the Agent or being deprived of the Free Probes.

Sums paid for the current period remain due to Sensor Factory, except where termination is caused by Sensor Factory's own breach.

Article 13. Governing law and language

This agreement is governed by French law. Articles 10 and 20 of the General Terms and Conditions of Sale version 4.0, on liability and the settlement of disputes, apply to this agreement.

This agreement is drawn up in French. Sensor Factory may provide a translation, in English in particular, for the Customer's convenience. That translation has informative value only: **the French version alone is binding** between the parties, and it alone will be relied upon before any court. Where the French version and a translation differ, for any reason whatsoever, the French version prevails.